

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-21

MRSF, Inc.

v.

YANG MING MARINE TRANSPORT CORPORATION

MOTION FOR LEAVE TO REPLY
TO COMPLAINANT’S RESPONSE TO MOTION TO COMPEL

Respondent Yang Ming, through its undersigned counsel, requests leave to reply briefly to Complainant MRSF’s untimely response to Respondent’s January 6, 2023 Motion to Compel. Good cause arises from Complainant’s failure to file its response on time and the misleading nature of some of its statements. We will in return not object to the Presiding Officer considering Complainant’s response even though it is out of time.

The points we wish to make are as follows:

1. Complainant’s Response is untimely. Under FMC Rule 71, it was due no later than January 13, 2023, not late in the day on January 18. And surprisingly, it was not accompanied by a motion to file out of time.¹ This is unfortunately symptomatic of Complainant’s general behavior in this proceeding – treating schedules and deadlines as mere suggestions. Complainant’s responses to interrogatories and requests for admission), originally due on November 14, 2022, then moved to November 29, then to December 21, were not made until December 21, 2022. Likewise, production of

¹ Perhaps Counsel was not aware that the time requirement for responding to a motion to compel before the Presiding Officer is set by the FMC’s own rules, rather than those possibly applicable in federal courts.

documents, which the Presiding Officer extended until December 21, 2022, were not provided until January 3, 2023, and even then, its production was woefully incomplete.

2. Complainant does not assert that Respondent's identification of deficiencies in the responses to interrogatories/requests for admission are incorrect, only that it needs more time. We are certainly willing to work with Complainant's Counsel to smooth the production of responses compatible with the FMC's Rules, if it can propose a time frame acceptable to the Presiding Officer. We are willing to do so even after the Motion to Compel is granted.
3. Complainant's cavil about our alleged failure to confer is totally misplaced. As stated in our Motion, the reason for filing the Motion quickly was the schedule set by the Presiding Officer. More importantly, not only did Complainant fail to address the deficiencies in any meaningful way, it declined even to tell us when it might do so.
4. The upshot is that Complainant's derelict approach to discovery threatens to extend discovery well into the summer, or otherwise to deprive Respondent of its right to take discovery. Complainant has dragged its feet time and time again in producing discovery responses, and even when finally produced has been decidedly deficient. It would not need more time to remedy deficiencies, and there would be no motion to compel, had Complainants simply responded as required by the Commission's Rules in the first place.
5. There is a real likelihood that Complainant's failure to produce adequate discovery responses on a timely basis will cascade. As of now, the only dispute before the Presiding Officer is about Complainant's responses to Respondent's first set of

interrogatories and requests for admissions. Complainant's initial document production is also deficient and will soon be the subject of another notice of deficiencies and likely another motion to compel. Further, it would not be at all surprising if Complainant's responses to Respondent's supplemental discovery requests (timely served in line with the procedural schedule on January 10 and due February 9) reflect similar deficiencies necessitating further discussions/motions. We do not see how any of that can be accommodated even with the new schedule that slightly extends the dates for discovery.

Respectfully submitted,

/s/ Rebecca A. Fenneman

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Dated: January 18, 2023

CERTIFICATE OF SERVICE

I certify that on the 18th day of January, 2022, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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